

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY-----X
ITZHAK NISSANOFF,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER JOSEPH
CUTAJAR (Shield # 29254) and NYPD OFFICERS JOHN
and JANE DOE #'s 1-8 (names and numbers are unknown at
present) and other unidentified members of the New York City
Police Department,Defendants.
-----X**SUMMONS**

Index #

Basis of Venue:
Place of IncidentPlaintiff Designates
New York County as
Place of Trial**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 4, 2020

Respectfully submitted,

/s/ *Sydney Ohagan*

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE OFFICER JOSEPH CUTAJAR (Shield # 29254), Midtown North
Precinct, New York County, New York.

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THE CITY OF NEW YORK, NYPD OFFICER JOSEPH CUTAJAR (Shield # 29254) and NYPD OFFICERS JOHN and JANE DOE #'s 1-8 (names and numbers are unknown at present) and other unidentified members of the New York City Police Department,

Defendants.
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**VERIFIED
COMPLAINT**

Plaintiff **Itzhak Nissanoff** by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and denial of a fair trial of the plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Itzhak Nissanoff is a citizen of the United States and a resident of New York.
3. POLICE OFFICER JOSEPH CUTAJAR (Shield # 29254) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER JOSEPH CUTAJAR (Shield # 29254) is being sued in his individual capacity and official capacity.

5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe # 2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

11. On the afternoon of September 8, 2017, Mr. Nissanoff was approached by police officers in front of his place of business in New York, New York. He was arrested and charged with Grand Larceny in the second degree, relating to the alleged theft of a diamond.
12. Mr. Nissanoff denies the charge. He never stole anything from anyone and there was no reliable evidence that he had committed any crime. The criminal complaint alleges that Mr. Nissanoff received an electronically tracked diamond, valued at \$400,000, from an individual with the understanding it would be sent to a diamond processor named "Suncrest". It alleges that Mr. Nissanoff mailed the diamond to Suncrest and after Suncrest returned it to him, he was filmed placing the diamond in his pocket. It alleges that days later, the original sender received a box from Mr. Nissanoff that was supposed to contain the diamond, but it did not. These allegations alone are insufficient to establish probable cause for the diamond theft. Merely placing the diamond in his pocket does not establish an intent to steal anything, as items are often placed in pockets for safekeeping, transport, or other completely innocent reasons, especially in the diamond industry. There is no evidence or allegations establishing the box was empty when brought to the mailing company or that it was in fact, empty upon arrival. Rather, officers relied upon the uncorroborated

complaint of an individual located abroad in India. Furthermore, there never any evidence whatsoever that Mr. Nissanoff retained the diamond in his possession for any period of time because it was never found on his person, in his place of business or home, and there is no evidence that he sold it to a third party.

13. As a result of the defendants' lack of evidence and fabrication of evidence, Mr. Nissanoff suffered irreparable harm to his reputation. He was arrested in a very public manner outside his long-established place of business. NYPD Officers confiscated all his possessions at the time of his arrest, including diamonds and jewels belonging to other diamond dealers and customers. These items were retained as "arrest evidence" for approximately one year. As such, all his customers and fellow dealers were denied access to their substantially valuable goods for a long period of time. This destroyed his business relationship with these individuals and damaged his reputation in the diamond trade community. Further, he was arrested publicly in front of his business. This arrest was filmed by individuals in the street. It was humiliating and damaging to him emotionally and professionally.
14. Furthermore, at the time of his arrest, he pinned up against a wall and handcuffed tightly behind his back. Prior to his arrest, plaintiff Nissanoff had undergone surgery on his elbow to repairs 3 or 4 cracked bones. As a result of the surgery, he had limited movement in his elbow. Plaintiff Nissanoff repeatedly informed NYPD officers of his elbow injury and requested they place him in double cuffs or cuff him to the front of his body, but officers refused to accommodate him. When he was transferred to Central Booking, officers again ignored his request to be cuffed to the front of his body or in double cuffs. As a result, he suffered extreme pain while in custody.
15. At his arraignment, bail was set in the amount of \$5,000. Mr. Nissanoff retained private counsel at the cost of \$10,000. He paid bail in the amount of \$5,000. He was incarcerated for a period of 6-7 days. During his incarceration he received an incorrect dosage of medicine for his blood pressure and lost consciousness and nearly died. As a strict adherent of the Orthodox Jewish faith, he was unable to eat nearly any food other than apples during his time in custody. While in custody at Ryker's Island he received medical treatment for his elbow, back spasms, and blood pressure issues.
16. While the criminal case was pending, plaintiff attended at least 3 court dates.
17. All charges against Mr. Nissanoff were dismissed and sealed on motion of the prosecution on May 24, 2018.

FIRST CAUSE OF ACTION

ASSAULT

18. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 17 with the same force and effect as if more fully set forth at length herein.
19. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or

menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff was assaulted by Ezra Johnson and other numerous officers.

20. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
21. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

22. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully set forth at length herein.
23. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was assaulted by police officers and by other numerous officers.
24. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
25. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

26. Plaintiff repeats and alleges paragraphs 1 through 25 as if fully set forth herein.
27. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
28. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

29. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

30. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
32. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
33. Defendants commenced and continued a criminal proceeding against plaintiffs.
34. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
35. The prosecution and criminal proceedings terminated favorably to plaintiff May 24, 2018.
36. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
37. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION**FAILURE TO INTERVENE**

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
42. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
43. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
44. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
45. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION**NEGLIGENCE**

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.
47. Defendants owed a duty of care to plaintiff.
48. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
49. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
50. All of the foregoing occurred without any fault by plaintiff.
51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.
53. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
54. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
55. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

NINTH, TENTH, ELEVENTH, TWELFTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (9th claim); false-arrest/excessive-force/unlawful-search claims (10th claim); malicious prosecution claim (11th claim) and deprivation-of-fair-trial claim (12th claim).

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
58. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
59. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
60. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue and excessive force upon him causing physical injury, unlawful search, malicious prosecution, and fabrication of evidence violated his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty,

seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

61. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
62. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

THIRTEENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.
64. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
65. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
66. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
67. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
68. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

69. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
70. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, ITZHAK NISSANOFF, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
September 4, 2020

Respectfully submitted:

By: /s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE OFFICER JOSEPH CUTAJAR (Shield # 29254), Midtown North Precinct, New York County, New York.

ATTORNEY'S VERIFICATION

SYDNEY O'HAGAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
September 4, 2020

Sydney Ohagan /s/
Sydney O'Hagan, Esq.